

Smt Sudha Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 26 February 2024 · 2024:AHC:33084-DB · Writ-C No. 5759 of 2024 · **Writ disposed; clause 6.5 application to be decided in two weeks.**

HEADNOTE

Writ-C No. 5759 of 2024 was disposed of subject to the petitioner applying under clause 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2. Those proceedings are to be completed preferably within two weeks of the application and a certified copy of the order. Further rights of the parties abide the order so passed.

FACTUAL SUMMARY

Smt Sudha Singh filed Writ-C No. 5759 of 2024 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and another. Ram Raj Prajapati and Ziya Uddin appeared for her, C.S.C. for the State, and Narendra Kumar Tiwari for the other respondent. On 26 February 2024 the Division Bench in Court No. 39 heard counsel and perused the record. She was to carry her application, with a certified copy of the order, to respondent no. 2.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Writ disposed subject to a clause 6.5 application

HOLDING

The writ petition is disposed of subject to the petitioner applying under clause 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2. The proceedings are to be completed and concluded as expeditiously as possible, preferably within two weeks from filing of the application and presentation of a certified copy of this order. All further rights of the parties shall abide by the order to be passed. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench disposed of the writ subject to Smt Sudha Singh applying under clause 6.5 before respondent no. 2, and asked that authority to conclude the proceedings preferably within two weeks of the application and a certified copy of the order. ¶ 1-2

article-226-alternate-remedy-up-supply-code-6.5 The writ grievance was not decided on merits. The petitioner was relegated to a clause 6.5 application, and the parties' further rights were left to the order to be passed on that application. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY DISPUTE

Further rights of the parties abide the order to be passed on the clause 6.5 application. ¶ 2